



Bill Number: H.B. 2573

Rogers ADD COW Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Removes the requirement that a person who is subject to a one-year driver license revocation for multiple simple DUI offenses must complete 45 days of the license revocation period prior to being eligible for a special ignition interlock restricted driver license.
2. Modifies the definition of *evidence-based psychotherapy* to include:
 - a) a licensed health professional who is authorized to engage in the practice of behavioral health; and
 - b) a licensed health professional whose scope of practice authorizes the professional to independently provide psychotherapy, including psychiatrists, psychiatric physician assistants and psychiatric nurse practitioners.
3. Requires ignition interlock manufacturers to provide specified information regarding use of an ignition interlock device to a licensed health professional who is providing evidence-based psychotherapy to the person who is using the ignition interlock device.

ADDITIONAL COW
ROGERS FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2573
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 28-1381, Arizona Revised Statutes, is amended
3 to read:

4 28-1381. Driving or actual physical control while under the
5 influence; trial by jury; presumptions; admissible
6 evidence; sentencing; time limitation; violation;
7 classification; definition

8 A. It is unlawful for a person to drive or be in actual physical
9 control of a vehicle in this state under any of the following
10 circumstances:

11 1. While under the influence of intoxicating liquor, any drug, a
12 vapor releasing substance containing a toxic substance or any combination
13 of liquor, drugs or vapor releasing substances if the person is impaired
14 to the slightest degree.

15 2. If the person has an alcohol concentration of 0.08 or more
16 within two hours of driving or being in actual physical control of the
17 vehicle and the alcohol concentration results from alcohol consumed either
18 before or while driving or being in actual physical control of the
19 vehicle.

20 3. While there is any drug defined in section 13-3401 or its
21 metabolite in the person's body.

22 4. If the vehicle is a commercial motor vehicle that requires a
23 person to obtain a commercial driver license as defined in section 28-3001
24 and the person has an alcohol concentration of 0.04 or more.

25 5. While operating a vehicle for hire as defined in section 28-9501
26 or while providing transportation network services as defined in section
27 28-9551 as a transportation network company driver as defined in section
28 28-9551 if the person has an alcohol concentration of 0.04 or more.

1 B. It is not a defense to a charge of a violation of subsection A,
2 paragraph 1 of this section that the person is or has been entitled to use
3 the drug under the laws of this state.

4 C. A person who is convicted of a violation of this section is
5 guilty of a class 1 misdemeanor.

6 D. A person using a drug as prescribed by a medical practitioner
7 who is licensed pursuant to title 32 and who is authorized to prescribe
8 the drug is not guilty of violating subsection A, paragraph 3 of this
9 section.

10 E. In any prosecution for a violation of this section, the state
11 shall allege, for the purpose of classification and sentencing pursuant to
12 this section, all prior convictions of violating this section, section
13 28-1382 or section 28-1383 occurring within the past thirty-six months,
14 unless there is an insufficient legal or factual basis to do so.

15 F. At the arraignment, the court shall inform the defendant that
16 the defendant may request a trial by jury and that the request, if made,
17 shall be granted.

18 G. In a trial, action or proceeding for a violation of this section
19 or section 28-1383 other than a trial, action or proceeding involving a
20 person who is driving or in actual physical control of a commercial motor
21 vehicle or a vehicle for hire as defined in section 28-9501 or involving a
22 person who is providing transportation network services as defined in
23 section 28-9551 as a transportation network company driver as defined in
24 section 28-9551, the defendant's alcohol concentration within two hours of
25 the time of driving or being in actual physical control as shown by
26 analysis of the defendant's blood, breath or other bodily substance gives
27 rise to the following presumptions:

28 1. If there was at that time 0.05 or less alcohol concentration in
29 the defendant's blood, breath or other bodily substance, it may be
30 presumed that the defendant was not under the influence of intoxicating
31 liquor.

32 2. If there was at that time in excess of 0.05 but less than 0.08
33 alcohol concentration in the defendant's blood, breath or other bodily
34 substance, that fact shall not give rise to a presumption that the
35 defendant was or was not under the influence of intoxicating liquor, but
36 that fact may be considered with other competent evidence in determining
37 the guilt or innocence of the defendant.

38 3. If there was at that time 0.08 or more alcohol concentration in
39 the defendant's blood, breath or other bodily substance, it may be
40 presumed that the defendant was under the influence of intoxicating
41 liquor.

42 H. Subsection G of this section does not limit the introduction of
43 any other competent evidence bearing on the question of whether or not the
44 defendant was under the influence of intoxicating liquor.

1 I. A person who is convicted of a violation of this section:
2 1. Shall be sentenced to serve not less than ten consecutive days
3 in jail and is not eligible for probation or suspension of execution of
4 sentence unless the entire sentence is served.
5 2. Shall pay a fine of not less than \$250.
6 3. May be ordered by a court to perform community restitution.
7 4. Shall pay an additional assessment of \$500 to be deposited by
8 the state treasurer in the prison construction and operations fund
9 established by section 41-1651. This assessment is not subject to any
10 surcharge. If the conviction occurred in the superior court or a justice
11 court, the court shall transmit the assessed monies to the county
12 treasurer. If the conviction occurred in a municipal court, the court
13 shall transmit the assessed monies to the city treasurer. The city or
14 county treasurer shall transmit the monies received to the state
15 treasurer.
16 5. Shall pay an additional assessment of \$500 to be deposited by
17 the state treasurer in the public safety equipment fund established by
18 section 41-1723. This assessment is not subject to any surcharge. If the
19 conviction occurred in the superior court or a justice court, the court
20 shall transmit the assessed monies to the county treasurer. If the
21 conviction occurred in a municipal court, the court shall transmit the
22 assessed monies to the city treasurer. The city or county treasurer shall
23 transmit the monies received to the state treasurer.
24 6. If the violation involved intoxicating liquor, shall be required
25 by the department, on report of the conviction, to equip any motor vehicle
26 the person operates with a certified ignition interlock device pursuant to
27 section 28-3319. In addition, the court may order the person to equip any
28 motor vehicle the person operates with a certified ignition interlock
29 device for more than twelve months beginning on the date the person
30 successfully completes the alcohol or other drug screening, education[
31 ~~evidence-based psychotherapy~~] or treatment program [OR EVIDENCE-BASED
32 PSYCHOTHERAPY] requirements of this title and the person is otherwise
33 eligible to reinstate the person's driver license or driving
34 privilege. The person who operates a motor vehicle with a certified
35 ignition interlock device under this paragraph shall comply with article 5
36 of this chapter.
37 7. Shall be required by the department to attend and successfully
38 complete an approved traffic survival school course.
39 8. At the person's option, may be ordered by the court to
40 participate in a religious program that is approved by the court. The
41 person's participation in a religious program must be voluntary, and the
42 purpose of the religious program may not include any effort to coerce the
43 person to adopt or change any religious affiliation or beliefs.
44 J. Notwithstanding subsection I, paragraph 1 of this section, at
45 the time of sentencing the judge may suspend all but one day of the

1 sentence if the person completes a court ordered alcohol or other drug
2 screening, education[, ~~evidence-based psychotherapy~~] or treatment program
3 [OR EVIDENCE-BASED PSYCHOTHERAPY]. If the person fails to complete the
4 court ordered alcohol or other drug screening, education[, ~~evidence-based~~
5 ~~psychotherapy~~] or treatment program [OR EVIDENCE-BASED PSYCHOTHERAPY] and
6 has not been placed on probation, the court shall issue an order to show
7 cause to the defendant as to why the remaining jail sentence should not be
8 served.

9 K. If within a period of eighty-four months a person is convicted
10 of a second violation of this section or is convicted of a violation of
11 this section and has previously been convicted of a violation of section
12 28-1382 or 28-1383 or an act in another jurisdiction that if committed in
13 this state would be a violation of this section or section 28-1382 or
14 28-1383, the person:

15 1. Shall be sentenced to serve not less than ninety days in jail,
16 thirty days of which shall be served consecutively, and is not eligible
17 for probation or suspension of execution of sentence unless the entire
18 sentence has been served.

19 2. Shall pay a fine of not less than \$500.

20 3. Shall be ordered by a court to perform at least thirty hours of
21 community restitution.

22 4. Shall have the person's driving privilege revoked for one year.
23 The court shall report the conviction to the department. On receipt of
24 the report, the department shall revoke the person's driving privilege
25 and, if the violation involved intoxicating liquor, shall require the
26 person to equip any motor vehicle the person operates with a certified
27 ignition interlock device pursuant to section 28-3319. In addition, the
28 court may order the person to equip any motor vehicle the person operates
29 with a certified ignition interlock device for more than twelve months
30 beginning on the date the person successfully completes the alcohol or
31 other drug screening, education[, ~~evidence-based psychotherapy~~] or
32 treatment program [OR EVIDENCE-BASED PSYCHOTHERAPY] requirements of this
33 title and the person is otherwise eligible to reinstate the person's
34 driver license or driving privilege. The person who operates a motor
35 vehicle with a certified ignition interlock device under this paragraph
36 shall comply with article 5 of this chapter.

37 5. Shall pay an additional assessment of \$1,250 to be deposited by
38 the state treasurer in the prison construction and operations fund
39 established by section 41-1651. This assessment is not subject to any
40 surcharge. If the conviction occurred in the superior court or a justice
41 court, the court shall transmit the assessed monies to the county
42 treasurer. If the conviction occurred in a municipal court, the court
43 shall transmit the assessed monies to the city treasurer. The city or
44 county treasurer shall transmit the monies received to the state
45 treasurer.

1 6. Shall pay an additional assessment of \$1,250 to be deposited by
2 the state treasurer in the public safety equipment fund established by
3 section 41-1723. This assessment is not subject to any surcharge. If the
4 conviction occurred in the superior court or a justice court, the court
5 shall transmit the assessed monies to the county treasurer. If the
6 conviction occurred in a municipal court, the court shall transmit the
7 assessed monies to the city treasurer. The city or county treasurer shall
8 transmit the monies received to the state treasurer.

9 7. Shall be required by the department to attend and successfully
10 complete an approved traffic survival school course.

11 L. Notwithstanding subsection K, paragraph 1 of this section, at
12 the time of sentencing, the judge may suspend all but thirty days of the
13 sentence if the person completes a court ordered alcohol or other drug
14 screening, education[, evidence-based psychotherapy] or treatment program
15 [OR EVIDENCE-BASED PSYCHOTHERAPY]. If the person fails to complete the
16 court ordered alcohol or other drug screening, education[, evidence-based
17 psychotherapy] or treatment program [OR EVIDENCE-BASED PSYCHOTHERAPY] and
18 has not been placed on probation, the court shall issue an order to show
19 cause as to why the remaining jail sentence should not be served.

20 M. In applying the eighty-four month provision of subsection K of
21 this section, the dates of the commission of the offense shall be the
22 determining factor, irrespective of the sequence in which the offenses
23 were committed.

24 N. A second violation for which a conviction occurs as provided in
25 this section shall not include a conviction for an offense arising out of
26 the same series of acts.

27 O. ~~[After completing forty-five days of the revocation period~~
28 ~~prescribed by subsection K of this section,]~~ A person whose driving
29 privilege is revoked for a violation of this section and who is sentenced
30 pursuant to subsection K of this section is eligible for a special
31 ignition interlock restricted driver license pursuant to section 28-1401.

32 P. The court may order a person who is convicted of a violation of
33 this section that does not involve intoxicating liquor to equip any motor
34 vehicle the person operates with a certified ignition interlock device
35 pursuant to section 28-3319. On receipt of the report of conviction and
36 certified ignition interlock device requirement, the department shall
37 require the person to equip any motor vehicle the person operates with a
38 certified ignition interlock device pursuant to section 28-3319. In
39 addition, the court may order the person to equip any motor vehicle the
40 person operates with a certified ignition interlock device for more than
41 twelve months beginning on the date the person successfully completes the
42 alcohol or other drug screening, education[, evidence-based psychotherapy]
43 or treatment program [OR EVIDENCE-BASED PSYCHOTHERAPY] requirements of
44 this title and the person is otherwise eligible to reinstate the person's
45 driver license or driving privilege. The person who operates a motor

1 vehicle with a certified ignition interlock device under this subsection
2 shall comply with article 5 of this chapter.

3 Q. A prosecution for a violation of this section involving a
4 collision that resulted in serious physical injury or death as identified
5 in a written accident report completed pursuant to section 28-667 must be
6 commenced within two years after actual discovery of the offense by the
7 state or the political subdivision having jurisdiction or discovery by the
8 state or the political subdivision that should have occurred with the
9 exercise of reasonable diligence, whichever first occurs.

10 R. For the purposes of this section, "evidence-based psychotherapy"
11 means psychotherapy services that are offered by [ANY OF THE FOLLOWING AND
12 THAT INTEGRATE THE BEST AVAILABLE SCIENTIFIC RESEARCH WITH CLINICAL
13 EXPERTISE BASED ON THE CONTEXT OF THE PATIENT'S CHARACTERISTICS, CULTURE
14 AND PREFERENCES:

15 1.] A psychologist who is licensed pursuant to title 32, chapter
16 19.1 [and who integrates the best available scientific research with
17 clinical expertise based on the context of the patient's characteristics,
18 culture and preferences].

19 [2. A HEALTH PROFESSIONAL WHO IS LICENSED PURSUANT TO TITLE 32,
20 CHAPTER 33 AND WHO IS AUTHORIZED TO ENGAGE IN THE PRACTICE OF BEHAVIORAL
21 HEALTH.

22 3. A HEALTH PROFESSIONAL WHO IS LICENSED IN THIS STATE PURSUANT TO
23 TITLE 32 AND WHOSE SCOPE OF PRACTICE AUTHORIZES THE HEALTH PROFESSIONAL TO
24 INDEPENDENTLY PROVIDE PSYCHOTHERAPY, INCLUDING:

25 (a) A PSYCHIATRIC NURSE PRACTITIONER WHO IS LICENSED PURSUANT TO
26 TITLE 32, CHAPTER 15.

27 (b) A PSYCHIATRIC PHYSICIAN ASSISTANT WHO IS LICENSED PURSUANT TO
28 TITLE 32, CHAPTER 25.

29 (c) A PSYCHIATRIST WHO IS LICENSED PURSUANT TO TITLE 32, CHAPTERS
30 13 AND 17.]>>

31 Sec. 2. Section 28-1382, Arizona Revised Statutes, is amended to
32 read:

33 28-1382. Driving or actual physical control while under the
34 extreme influence of intoxicating liquor; trial by
35 jury; sentencing; time limitation; violation;
36 classification

37 A. It is unlawful for a person to drive or be in actual physical
38 control of a vehicle in this state if the person has an alcohol
39 concentration as follows within two hours of driving or being in actual
40 physical control of the vehicle and the alcohol concentration results from
41 alcohol consumed either before or while driving or being in actual
42 physical control of the vehicle:

43 1. 0.15 or more but less than 0.20.

44 2. 0.20 or more.

1 B. A person who is convicted of a violation of this section is
2 guilty of driving or being in actual physical control of a vehicle while
3 under the extreme influence of intoxicating liquor.

4 C. At the arraignment, the court shall inform the defendant that
5 the defendant may request a trial by jury and that the request, if made,
6 shall be granted.

7 D. A person who is convicted of a violation of this section:

8 1. Shall be sentenced to serve not less than thirty consecutive
9 days in jail and is not eligible for probation or suspension of execution
10 of sentence unless the entire sentence is served if the person is
11 convicted of a violation of subsection A, paragraph 1 of this section. A
12 person who is convicted of a violation of subsection A, paragraph 2 of
13 this section shall be sentenced to serve not less than forty-five
14 consecutive days in jail and is not eligible for probation or suspension
15 of execution of sentence unless the entire sentence is served.

16 2. Shall pay a fine of not less than \$250, except that a person who
17 is convicted of a violation of subsection A, paragraph 2 of this section
18 shall pay a fine of not less than \$500. The fine prescribed in this
19 paragraph and any assessments, restitution and incarceration costs shall
20 be paid before the assessment prescribed in paragraph 3 of this
21 subsection.

22 3. Shall pay an additional assessment of \$250. If the conviction
23 occurred in the superior court or a justice court, the court shall
24 transmit the monies received pursuant to this paragraph to the county
25 treasurer. If the conviction occurred in a municipal court, the court
26 shall transmit the monies received pursuant to this paragraph to the city
27 treasurer. The city or county treasurer shall transmit the monies
28 received to the state treasurer. The state treasurer shall deposit the
29 monies received in the driving under the influence abatement fund
30 established by section 28-1304.

31 4. May be ordered by a court to perform community restitution.

32 5. Shall be required by the department, on receipt of the report of
33 conviction, to equip any motor vehicle the person operates with a
34 certified ignition interlock device pursuant to section 28-3319. In
35 addition, the court may order the person to equip any motor vehicle the
36 person operates with a certified ignition interlock device for more than
37 twelve months beginning on the date the person successfully completes the
38 alcohol or other drug screening, education or treatment program [OR
39 EVIDENCE-BASED PSYCHOTHERAPY] requirements of this title and the person is
40 otherwise eligible to reinstate the person's driver license or driving
41 privilege. The person who operates a motor vehicle with a certified
42 ignition interlock device under this paragraph shall comply with article 5
43 of this chapter.

44 6. Shall pay an additional assessment of \$1,000 to be deposited by
45 the state treasurer in the prison construction and operations fund

1 established by section 41-1651. This assessment is not subject to any
2 surcharge. If the conviction occurred in the superior court or a justice
3 court, the court shall transmit the assessed monies to the county
4 treasurer. If the conviction occurred in a municipal court, the court
5 shall transmit the assessed monies to the city treasurer. The city or
6 county treasurer shall transmit the monies received to the state
7 treasurer.

8 7. Shall pay an additional assessment of \$1,000 to be deposited by
9 the state treasurer in the public safety equipment fund established by
10 section 41-1723. This assessment is not subject to any surcharge. If the
11 conviction occurred in the superior court or a justice court, the court
12 shall transmit the assessed monies to the county treasurer. If the
13 conviction occurred in a municipal court, the court shall transmit the
14 assessed monies to the city treasurer. The city or county treasurer shall
15 transmit the monies received to the state treasurer.

16 8. Shall be required by the department to attend and successfully
17 complete an approved traffic survival school course.

18 E. If within a period of eighty-four months a person is convicted
19 of a second violation of this section or is convicted of a violation of
20 this section and has previously been convicted of a violation of section
21 28-1381 or 28-1383 or an act in another jurisdiction that if committed in
22 this state would be a violation of this section or section 28-1381 or
23 28-1383, the person:

24 1. Shall be sentenced to serve not less than one hundred twenty
25 days in jail, sixty days of which shall be served consecutively, and is
26 not eligible for probation or suspension of execution of sentence unless
27 the entire sentence has been served if the person is convicted of a
28 violation of subsection A, paragraph 1 of this section. A person who is
29 convicted of a violation of subsection A, paragraph 2 of this section
30 shall be sentenced to serve not less than one hundred eighty days in jail,
31 ninety of which shall be served consecutively, and is not eligible for
32 probation or suspension of execution of sentence unless the entire
33 sentence has been served.

34 2. Shall pay a fine of not less than \$500, except that a person who
35 is convicted of a violation of subsection A, paragraph 2 of this section
36 shall pay a fine of not less than \$1,000. The fine prescribed in this
37 paragraph and any assessments, restitution and incarceration costs shall
38 be paid before the assessment prescribed in paragraph 3 of this
39 subsection.

40 3. Shall pay an additional assessment of \$250. If the conviction
41 occurred in the superior court or a justice court, the court shall
42 transmit the monies received pursuant to this paragraph to the county
43 treasurer. If the conviction occurred in a municipal court, the court
44 shall transmit the monies received pursuant to this paragraph to the city
45 treasurer. The city or county treasurer shall transmit the monies

1 received to the state treasurer. The state treasurer shall deposit the
2 monies received in the driving under the influence abatement fund
3 established by section 28-1304.

4 4. Shall be ordered by a court to perform at least thirty hours of
5 community restitution.

6 5. Shall have the person's driving privilege revoked for at least
7 one year. The court shall report the conviction to the department. On
8 receipt of the report, the department shall revoke the person's driving
9 privilege and shall require the person to equip any motor vehicle the
10 person operates with a certified ignition interlock device pursuant to
11 section 28-3319. In addition, the court may order the person to equip any
12 motor vehicle the person operates with a certified ignition interlock
13 device for more than twelve months beginning on the date the person
14 successfully completes the alcohol or other drug screening, education or
15 treatment program [OR EVIDENCE-BASED PSYCHOTHERAPY] requirements of this
16 title and the person is otherwise eligible to reinstate the person's
17 driver license or driving privilege. The person who operates a motor
18 vehicle with a certified ignition interlock device under this paragraph
19 shall comply with article 5 of this chapter.

20 6. Shall pay an additional assessment of \$1,250 to be deposited by
21 the state treasurer in the prison construction and operations fund
22 established by section 41-1651. This assessment is not subject to any
23 surcharge. If the conviction occurred in the superior court or a justice
24 court, the court shall transmit the assessed monies to the county
25 treasurer. If the conviction occurred in a municipal court, the court
26 shall transmit the assessed monies to the city treasurer. The city or
27 county treasurer shall transmit the monies received to the state
28 treasurer.

29 7. Shall pay an additional assessment of \$1,250 to be deposited by
30 the state treasurer in the public safety equipment fund established by
31 section 41-1723. This assessment is not subject to any surcharge. If the
32 conviction occurred in the superior court or a justice court, the court
33 shall transmit the assessed monies to the county treasurer. If the
34 conviction occurred in a municipal court, the court shall transmit the
35 assessed monies to the city treasurer. The city or county treasurer shall
36 transmit the monies received to the state treasurer.

37 8. Shall be required by the department to attend and successfully
38 complete an approved traffic survival school course.

39 F. In applying the eighty-four month provision of subsection E of
40 this section, the dates of the commission of the offense shall be the
41 determining factor, irrespective of the sequence in which the offenses
42 were committed.

43 G. A second violation for which a conviction occurs as provided in
44 this section shall not include a conviction for an offense arising out of
45 the same series of acts.

1 H. ~~After completing forty-five days of the revocation period~~
2 ~~prescribed by subsection E of this section;~~ A person whose driving
3 privilege is revoked for a violation of this section and who is sentenced
4 pursuant to subsection E of this section is eligible for a special
5 ignition interlock restricted driver license pursuant to section 28-1401.

6 I. Notwithstanding subsection D, paragraph 1 of this section, at
7 the time of sentencing if the person is convicted of a violation of
8 subsection A, paragraph 1 of this section, the judge may suspend all but
9 nine days of the sentence if the person equips any motor vehicle the
10 person operates with a certified ignition interlock device for a period of
11 twelve months. If the person is convicted of a violation of subsection A,
12 paragraph 2 of this section, the judge may suspend all but fourteen days
13 of the sentence if the person equips any motor vehicle the person operates
14 with a certified ignition interlock device for a period of twelve months.
15 If the person fails to comply with article 5 of this chapter and has not
16 been placed on probation, the court shall issue an order to show cause as
17 to why the remaining jail sentence should not be served.

18 J. A prosecution for a violation of this section involving a
19 collision that resulted in serious physical injury or death as identified
20 in a written accident report completed pursuant to section 28-667 must be
21 commenced within two years after actual discovery of the offense by the
22 state or the political subdivision having jurisdiction or discovery by the
23 state or the political subdivision that should have occurred with the
24 exercise of reasonable diligence, whichever first occurs.

25 K. A person who is convicted of a violation of this section is
26 guilty of a class 1 misdemeanor.

27 <<Sec. 3. Section 28-1383, Arizona Revised Statutes, is amended to
28 read:

29 28-1383. Aggravated driving or actual physical control while
30 under the influence; county jail program; annual
31 report; violation; classification; definitions

32 A. A person is guilty of aggravated driving or actual physical
33 control while under the influence of intoxicating liquor or drugs if the
34 person does any of the following:

35 1. Commits a violation of section 28-1381, section 28-1382 or this
36 section while the person's driver license or privilege to drive is
37 suspended, canceled, revoked or refused or while a restriction is placed
38 on the person's driver license or privilege to drive as a result of
39 violating section 28-1381 or 28-1382 or under section 28-1385.

40 2. Within a period of eighty-four months commits a third or
41 subsequent violation of section 28-1381, section 28-1382 or this section
42 or is convicted of a violation of section 28-1381, section 28-1382 or this
43 section and has previously been convicted of any combination of
44 convictions of section 28-1381, section 28-1382 or this section or acts in

1 another jurisdiction that if committed in this state would be a violation
2 of section 28-1381, section 28-1382 or this section.

3 3. While a person under fifteen years of age is in the vehicle,
4 commits a violation of either:

5 (a) Section 28-1381.

6 (b) Section 28-1382.

7 4. While the person is ordered by the court or required pursuant to
8 section 28-3319 by the department to equip any motor vehicle the person
9 operates with a certified ignition interlock device, commits a violation
10 of section 28-1381, section 28-1382 or this section.

11 5. Commits a violation of section 28-1381, section 28-1382 or this
12 section while driving the wrong way on a highway.

13 B. The dates of the commission of the offenses are the determining
14 factor in applying the eighty-four month provision provided in subsection
15 A, paragraph 2 of this section regardless of the sequence in which the
16 offenses were committed. For the purposes of this section, a third or
17 subsequent violation for which a conviction occurs does not include a
18 conviction for an offense arising out of the same series of acts. The
19 time that a probationer is found to be on absconder status or the time
20 that a person is incarcerated in any state, federal, county or city jail
21 or correctional facility is excluded when determining the eighty-four
22 month period provided in subsection A, paragraph 2 and subsection E of
23 this section.

24 C. The notice to a person of the suspension, cancellation,
25 revocation or refusal of a driver license or privilege to drive is
26 effective as provided in section 28-3318 or pursuant to the laws of the
27 state issuing the license.

28 D. A person is not eligible for probation, pardon, commutation or
29 suspension of sentence or release on any other basis until the person has
30 served not less than four months in prison if the person is convicted
31 under any of the following:

32 1. Subsection A, paragraph 1 of this section.

33 2. Subsection A, paragraph 2 of this section and within an
34 eighty-four month period has been convicted of two prior violations of
35 section 28-1381, section 28-1382 or this section, or any combination of
36 those sections, or acts in another jurisdiction that if committed in this
37 state would be a violation of section 28-1381, section 28-1382 or this
38 section.

39 3. Subsection A, paragraph 5 of this section.

40 E. A person who is convicted under subsection A, paragraph 2 of
41 this section and who within an eighty-four month period has been convicted
42 of three or more prior violations of section 28-1381, section 28-1382 or
43 this section, or any combination of those sections, or acts in another
44 jurisdiction that if committed in this state would be a violation of
45 section 28-1381, section 28-1382 or this section is not eligible for

1 probation, pardon, commutation or suspension of sentence or release on any
2 other basis until the person has served not less than eight months in
3 prison.

4 F. A person who is convicted under subsection A, paragraph 3,
5 subdivision (a) of this section shall serve at least the minimum term of
6 incarceration required pursuant to section 28-1381.

7 G. A person who is convicted under subsection A, paragraph 3,
8 subdivision (b) of this section shall serve at least the minimum term of
9 incarceration required pursuant to section 28-1382.

10 H. A person who is convicted of a violation of this section shall
11 attend and complete alcohol or other drug screening, education or
12 treatment from an approved facility [OR RECEIVE EVIDENCE-BASED
13 PSYCHOTHERAPY AS ORDERED BY THE COURT]. If the person fails to comply
14 with this subsection and is placed on probation, in addition to the
15 provisions of section 13-901 the court may order that the person be
16 incarcerated as a term of probation as follows:

17 1. For a person sentenced pursuant to subsection D of this section,
18 for an individual period of not more than four months and a total period
19 of not more than one year.

20 2. For a person sentenced pursuant to subsection E of this section,
21 for an individual period of not more than eight months and a total period
22 of not more than two years.

23 I. The time that a person spends in custody pursuant to subsection
24 H of this section shall not be counted towards the sentence imposed if the
25 person's probation is revoked and the person is sentenced to prison after
26 revocation of probation.

27 J. On a conviction for a violation of this section, the court:

28 1. Shall report the conviction to the department. On receipt of
29 the report, the department shall revoke the driving privilege of the
30 person. The department shall not issue the person a new driver license
31 within one year of the date of the conviction and, if the violation
32 involved intoxicating liquor, shall require the person to equip any motor
33 vehicle the person operates with a certified ignition interlock device
34 pursuant to section 28-3319. In addition, the court may order the person
35 to equip any motor vehicle the person operates with a certified ignition
36 interlock device for more than twenty-four months beginning on the date
37 the person successfully completes the alcohol or other drug screening,
38 education or treatment program [OR EVIDENCE-BASED PSYCHOTHERAPY]
39 requirements of this title and the person is otherwise eligible to
40 reinstate the person's driver license or driving privilege. The person
41 who operates a motor vehicle with a certified ignition interlock device
42 under this paragraph shall comply with article 5 of this chapter.

43 2. In addition to any other penalty prescribed by law, shall order
44 the person to pay an additional assessment of \$250. If the conviction
45 occurred in the superior court or a justice court, the court shall

1 transmit the monies received pursuant to this paragraph to the county
2 treasurer. If the conviction occurred in a municipal court, the court
3 shall transmit the monies received pursuant to this paragraph to the city
4 treasurer. The city or county treasurer shall transmit the monies
5 received to the state treasurer. The state treasurer shall deposit the
6 monies received in the driving under the influence abatement fund
7 established by section 28-1304. Any fine imposed for a violation of this
8 section and any assessments, restitution and incarceration costs shall be
9 paid before the assessment prescribed in this paragraph.

10 3. Shall order the person to pay a fine of not less than \$750.

11 4. In addition to any other penalty prescribed by law, shall order
12 the person to pay an additional assessment of \$1,500 to be deposited by
13 the state treasurer in the prison construction and operations fund
14 established by section 41-1651. This assessment is not subject to any
15 surcharge. If the conviction occurred in the superior court or a justice
16 court, the court shall transmit the assessed monies to the county
17 treasurer. If the conviction occurred in a municipal court, the court
18 shall transmit the assessed monies to the city treasurer. The city or
19 county treasurer shall transmit the monies received to the state
20 treasurer.

21 5. In addition to any other penalty prescribed by law, shall order
22 the person to pay an additional assessment of \$1,500 to be deposited by
23 the state treasurer in the public safety equipment fund established by
24 section 41-1723. This assessment is not subject to any surcharge. If the
25 conviction occurred in the superior court or a justice court, the court
26 shall transmit the assessed monies to the county treasurer. If the
27 conviction occurred in a municipal court, the court shall transmit the
28 assessed monies to the city treasurer. The city or county treasurer shall
29 transmit the monies received to the state treasurer.

30 K. On conviction for a violation of this section the defendant
31 shall be required by the department to attend and successfully complete an
32 approved traffic survival school course.

33 L. After completing the period of suspension required by section
34 28-1385, a person whose driving privilege is revoked for a violation of
35 subsection A, paragraph 3 of this section may apply to the department for
36 a special ignition interlock restricted driver license pursuant to section
37 28-1401.

38 M. The court may order a person who is convicted of a violation of
39 this section that does not involve intoxicating liquor to equip any motor
40 vehicle the person operates with a certified ignition interlock device
41 pursuant to section 28-3319. On receipt of the report of conviction and
42 certified ignition interlock device requirement, the department shall
43 require the person to equip any motor vehicle the person operates with a
44 certified ignition interlock device pursuant to section 28-3319. In
45 addition, the court may order the person to equip any motor vehicle the

1 person operates with a certified ignition interlock device for more than
2 twelve months beginning on the date the person successfully completes the
3 alcohol or other drug screening, education or treatment program [OR
4 EVIDENCE-BASED PSYCHOTHERAPY] requirements of this title and the person is
5 otherwise eligible to reinstate the person's driver license or driving
6 privilege. The person who operates a motor vehicle with a certified
7 ignition interlock device under this subsection shall comply with article
8 5 of this chapter.

9 N. The sheriff of a county with a population of less than five
10 hundred thousand persons may establish an aggravated driving under the
11 influence jail program. If the sheriff establishes an aggravated driving
12 under the influence jail program, the program may not be implemented until
13 the state department of corrections enters into an agreement with the
14 county board of supervisors pursuant to section 31-234 to facilitate the
15 program. Notwithstanding subsections D and E of this section, if the
16 violation occurs in a county that has established and implemented an
17 aggravated driving under the influence jail program or in a county that is
18 contiguous to a county that has established and implemented an aggravated
19 driving under the influence jail program and the person is placed on
20 probation, the mandatory term of incarceration that the person would
21 otherwise serve in prison may be served in the jail of the county that
22 established and implemented the program. A person who is incarcerated in
23 a county jail pursuant to this subsection is not eligible for any release,
24 work detail or monitoring program that the person would not otherwise be
25 eligible for if incarcerated in prison. A county sheriff who establishes
26 an aggravated driving under the influence jail program pursuant to this
27 subsection shall submit an annual report to the Arizona criminal justice
28 commission that contains the data that the Arizona statistical analysis
29 center determines is necessary to prepare a recidivism report pursuant to
30 section 41-2405.

31 O. Aggravated driving or actual physical control while under the
32 influence of intoxicating liquor or drugs committed under:

33 1. Subsection A, paragraph 1, 2, 4 or 5 of this section is a class
34 4 felony.

35 2. Subsection A, paragraph 3 of this section is a class 6 felony.

36 P. For the purposes of this section:

37 1. "Suspension, cancellation, revocation or refusal" means any
38 suspension, cancellation, revocation or refusal.

39 2. "Wrong way" means vehicular movement that is in a direction
40 opposing the legal flow of traffic. Wrong way does not include median
41 crossing or a collision where a motor vehicle comes to a stop facing the
42 wrong way.>>

1 <<Sec. 4. Section 28-1387, Arizona Revised Statutes, is amended to
2 read:

3 28-1387. Prior convictions; alcohol or other drug screening,
4 education and treatment and evidence-based
5 psychotherapy; license suspension; supervised
6 probation; civil liability; procedures

7 A. The court shall allow the allegation of a prior conviction or
8 any other pending charge of a violation of section 28-1381, 28-1382 or
9 28-1383 or an act in another jurisdiction that if committed in this state
10 would be a violation of section 28-1381, 28-1382 or 28-1383 filed twenty
11 or more days before the date the case is actually tried and may allow the
12 allegation of a prior conviction or any other pending charge of a
13 violation of section 28-1381, 28-1382 or 28-1383 or an act in another
14 jurisdiction that if committed in this state would be a violation of
15 section 28-1381, 28-1382 or 28-1383 filed at any time before the date the
16 case is actually tried if this state makes available to the defendant when
17 the allegation is filed a copy of any information obtained concerning the
18 prior conviction or other pending charge. Any conviction may be used to
19 enhance another conviction irrespective of the dates on which the offenses
20 occurred within the eighty-four month provision. For the purposes of this
21 article, an order of a juvenile court adjudicating a person delinquent is
22 equivalent to a conviction.

23 B. In addition to any other penalties prescribed by law, the judge
24 shall order a person who is convicted of a violation of section 28-1381,
25 28-1382 or 28-1383 to complete alcohol or other drug screening that is
26 provided by a facility approved by the department of health services, the
27 United States department of veterans affairs or a probation department.
28 If a judge determines that the person requires further alcohol or other
29 drug education or treatment [OR EVIDENCE-BASED PSYCHOTHERAPY], the person
30 may be required pursuant to court order to obtain alcohol or other drug
31 education or treatment [OR EVIDENCE-BASED PSYCHOTHERAPY] under the court's
32 supervision from an approved facility [OR A HEALTH PROFESSIONAL LICENSED
33 IN THIS STATE WHO PROVIDES EVIDENCE-BASED PSYCHOTHERAPY]. The judge may
34 review an education~~[.]~~ ~~[OR]~~ treatment [OR PSYCHOTHERAPY] determination at
35 the request of the state, the defendant or the probation officer or on the
36 judge's initiative. The person shall pay the costs of the screening,
37 education~~[.]~~ ~~[OR]~~ treatment [OR PSYCHOTHERAPY] unless, after considering
38 the person's ability to pay all or part of the costs, the court waives all
39 or part of the costs. If a person is referred to a screening, education
40 or treatment facility [OR PSYCHOTHERAPY], the facility [OR THE HEALTH
41 PROFESSIONAL] shall report to the court whether the person has
42 successfully completed the screening, education or treatment program [OR
43 PSYCHOTHERAPY]. The court may accept evidence of a person's completion of
44 alcohol or other drug screening pursuant to section 28-1445 as sufficient
45 to meet the requirements of this section or section 28-1381, 28-1382 or

1 28-1383 or may order the person to complete additional alcohol or other
2 drug screening, education or treatment programs [OR EVIDENCE-BASED
3 PSYCHOTHERAPY]. If a person has previously been ordered to complete an
4 alcohol or other drug screening, education or treatment program [OR
5 EVIDENCE-BASED PSYCHOTHERAPY] pursuant to this section, the judge shall
6 order the person to complete an alcohol or other drug screening, education
7 or treatment program [OR EVIDENCE-BASED PSYCHOTHERAPY] unless the court
8 determines that alternative sanctions are more appropriate.

9 C. After a person who is sentenced pursuant to section 28-1381,
10 subsection I has served twenty-four consecutive hours in jail or after a
11 person who is sentenced pursuant to section 28-1381, subsection K or
12 section 28-1382, subsection D or E has served forty-eight consecutive
13 hours in jail and after the court receives confirmation that the person is
14 employed or is a student, the court shall provide in the sentence that the
15 defendant, if the defendant is employed or is a student and can continue
16 the defendant's employment or schooling, may continue the employment or
17 schooling for not more than twelve hours a day nor more than six days a
18 week, unless the court finds good cause to not allow the release and
19 places those findings on the record. The person shall spend the remaining
20 day, days or parts of days in jail until the sentence is served and shall
21 be allowed out of jail only long enough to complete the actual hours of
22 employment or schooling.

23 D. Unless the license of a person convicted under section 28-1381
24 or 28-1382 has been or is suspended pursuant to section 28-1321 or
25 28-1385, the department on receipt of the abstract of conviction of a
26 violation of section 28-1381 or 28-1382 shall suspend the license of the
27 affected person for not less than ninety consecutive days.

28 E. When the department receives notification that the person meets
29 the criteria provided in section 28-1385, subsection I, the department
30 shall suspend the driving privileges of the person for not less than
31 thirty consecutive days and shall restrict the person's driving privileges
32 as described in section 28-144 for not less than sixty consecutive
33 additional days.

34 F. If a person is placed on probation for violating section 28-1381
35 or 28-1382, the probation shall be supervised unless the court finds that
36 supervised probation is not necessary or the court does not have
37 supervisory probation services.

38 G. Any political subdivision processing or using the services of a
39 person ordered to perform community restitution pursuant to section
40 28-1381 or 28-1382 does not incur any civil liability to the person
41 ordered to perform community restitution as a result of these activities
42 unless the political subdivision or its agent or employee acts with gross
43 negligence.

1 H. The court may order alternative sanctions to community
2 restitution that is ordered pursuant to section 28-1381, subsection K or
3 section 28-1382, subsection E if the court determines that education,
4 treatment or other alternative sanctions are more appropriate.>>

5 <<Sec. 5. Section 28-1461, Arizona Revised Statutes, is amended to
6 read:

7 28-1461. Use of certified ignition interlock devices;
8 reporting

9 A. If a person's driving privilege is limited pursuant to section
10 28-1381, 28-1382, 28-1383 or 28-3319 or restricted pursuant to section
11 28-1402:

12 1. The person shall:

13 (a) Pay the costs for installation and maintenance of the certified
14 ignition interlock device.

15 (b) Provide proof to the department of installation of a
16 functioning certified ignition interlock device in each motor vehicle
17 operated by the person.

18 (c) Provide proof of compliance to the department at least once
19 every ninety days during the period the person is ordered to use an
20 ignition interlock device.

21 (d) Provide proof of calibration of the certified ignition
22 interlock device to the department at least once every ninety days during
23 the period the person is ordered to use an ignition interlock device.

24 2. The department shall not reinstate the person's driving
25 privilege or issue a special ignition interlock restricted driver license
26 until the person has installed a functioning certified ignition interlock
27 device in each motor vehicle operated by the person and has provided proof
28 of installation to the department.

29 B. While a person maintains a functioning certified ignition
30 interlock device in a vehicle pursuant to this chapter, the ignition
31 interlock manufacturer shall electronically provide the following
32 information to the department in the manner and format prescribed by the
33 department in rule, and the department shall reject any information that
34 does not meet these requirements:

35 1. Any tampering or circumvention.

36 2. Any failure to provide proof of compliance or inspection of the
37 certified ignition interlock device as prescribed in this section.

38 3. Any attempt to operate the vehicle with an alcohol concentration
39 exceeding the presumptive limit as prescribed in section 28-1381,
40 subsection G, paragraph 3 or, if the person is under twenty-one years of
41 age, any attempt to operate the vehicle with any spirituous liquor in the
42 person's body.

43 4. Each time that a person fails to properly perform any set of
44 three consecutive rolling retests that occur during a drive cycle.

1 C. If the person is under eighteen years of age, the ignition
2 interlock service provider, if requested by the person's parent or legal
3 guardian, shall provide to the person's parent or legal guardian the
4 information prescribed in subsection B of this section.

5 D. On request, the ignition interlock manufacturer shall provide
6 the information prescribed in subsection B of this section to:

7 1. The department of health services authorized provider.

8 2. The probation department that is providing alcohol or other drug
9 screening, education or treatment to the person.

10 3. The physician, psychologist, physician assistant, registered
11 nurse practitioner or addiction counselor who is evaluating the person's
12 ability to safely operate a motor vehicle following a revocation of the
13 person's driving privilege as prescribed in section 28-3315, subsection D.

14 4. The court.

15 5. THE LICENSED HEALTH PROFESSIONAL WHO IS PROVIDING
16 EVIDENCE-BASED PSYCHOTHERAPY TO THE PERSON.]

17 E. The department shall extend an ignition interlock restricted or
18 limited driver license and the certified ignition interlock device period
19 for six months if the department has reasonable grounds to believe that
20 any of the following applies:

21 1. The person tampered with or circumvented the certified ignition
22 interlock device.

23 2. The person attempted to operate the vehicle with an alcohol
24 concentration exceeding the presumptive limit as prescribed in section
25 28-1381, subsection G, paragraph 3, two or more times during the period of
26 license restriction or limitation.

27 3. If the person is under twenty-one years of age, the person
28 attempted to operate the vehicle with any spirituous liquor in the
29 person's body during the period of license restriction or limitation.

30 4. The person failed to provide proof of compliance or inspection
31 as prescribed in this section.

32 5. The person attempts to operate the vehicle with an alcohol
33 concentration of 0.08 or more during a six month extension pursuant to
34 this subsection.

35 6. The person fails to properly perform any set of three
36 consecutive rolling retests that occur during a drive cycle.

37 F. If the special ignition interlock restricted license is extended
38 pursuant to subsection E of this section, the limitations prescribed in
39 sections 28-1381, 28-1382, 28-1383 and 28-3319 do not begin until the
40 restrictive period of the license ends.

41 G. The department shall make a notation on the driving record of a
42 person whose driving privilege is limited pursuant to section 28-1381,
43 28-1382, 28-1383, 28-1385 or 28-3319 or restricted pursuant to section
44 28-1402 that states that the person shall not operate a motor vehicle
45 unless it is equipped with a certified ignition interlock device. Unless

1 the person is convicted of a second or subsequent violation of section
2 28-1381, 28-1382 or 28-1383, the notation may not include any mark, color
3 change or other notation or indication on the person's physical driver
4 license.

5 H. Proof of compliance does not include a skipped or missed random
6 sample if the motor vehicle's ignition is off at the time of the skipped
7 or missed sample.>>

8 Sec. 6. Section 28-3319, Arizona Revised Statutes, is amended to
9 read:

10 28-3319. Action after license suspension, revocation or
11 denial for driving under the influence or refusal
12 of test; ignition interlock device requirement;
13 definitions

14 A. If, pursuant to section 28-1321, 28-1381, 28-1382, 28-1383,
15 28-3320 or 28-3322, the license of a driver or the driving privilege of a
16 nonresident is suspended or revoked, the department shall not terminate
17 the suspension or revocation or issue a special ignition interlock
18 restricted driver license, if applicable, pursuant to chapter 4, article
19 3.1 of this title until the person provides proof of financial
20 responsibility pursuant to chapter 9, article 3 of this title.

21 B. If, pursuant to section 28-1321, 28-1381, 28-1382, 28-1383,
22 28-3320 or 28-3322, an unlicensed resident is denied a license or permit
23 to operate a motor vehicle, the department shall not issue a license or
24 permit until the person provides proof of financial responsibility
25 pursuant to chapter 9, article 3 of this title.

26 C. If a person whose license or driving privilege is suspended or
27 revoked pursuant to section 28-1321, 28-1381, 28-1382, 28-1383 or 28-1385
28 is ordered, pursuant to section 28-1381, 28-1382, 28-1383 or 28-1385, to
29 attend alcohol or other drug screening, education[, ~~EVIDENCE-BASED~~
30 ~~PSYCHOTHERAPY~~] or treatment [OR EVIDENCE-BASED PSYCHOTHERAPY], the
31 department shall not either:

32 1. Terminate the suspension or issue a special ignition interlock
33 restricted driver license, if applicable, pursuant to chapter 4, article
34 3.1 of this title until the person or licensed treatment facility provides
35 proof that the person has completed or is participating satisfactorily in
36 alcohol or other drug screening, education[, ~~EVIDENCE-BASED PSYCHOTHERAPY~~]
37 or treatment [OR EVIDENCE-BASED PSYCHOTHERAPY].

38 2. Issue a new license or a special ignition interlock restricted
39 driver license, if applicable, pursuant to chapter 4, article 3.1 of this
40 title to operate a motor vehicle after the revocation until the person or
41 licensed treatment facility provides proof that the person has completed
42 OR IS SATISFACTORILY PARTICIPATING IN the court-ordered program.

43 D. Except as provided in subsection E of this section, on receipt
44 of a report of conviction from a court for a violation that involved
45 intoxicating liquor or that specifically requires the installation of a

1 certified ignition interlock device, the department shall require any
2 motor vehicle the convicted person operates to be equipped with a
3 functioning certified ignition interlock device and the convicted person
4 to meet the requirements prescribed in section 28-1461 as follows:

5 1. For twelve months if:

6 (a) Except as provided in subsection ~~H~~ H of this section, the
7 person is convicted of a violation of section 28-1381, section 28-1382,
8 subsection A, paragraph 1 or section 28-1383, subsection A, paragraph 3,
9 subdivision (a).

10 (b) The department determines that within a period of eighty-four
11 months the person is convicted of a second or subsequent violation of
12 section 28-1381 or section 28-1382, subsection A, paragraph 1 with a prior
13 conviction of a violation of section 28-1381, 28-1382 or 28-1383 or an act
14 in another jurisdiction that if committed in this state would be a
15 violation of section 28-1381, 28-1382 or 28-1383.

16 2. For eighteen months if the person is convicted of a violation of
17 section 28-1382, subsection A, paragraph 2.

18 3. For twenty-four months if:

19 (a) The person is convicted of a violation of section 28-1382,
20 subsection A, paragraph 2 and the department determines that within a
21 period of eighty-four months the person has a prior conviction of a
22 violation of section 28-1381, 28-1382 or 28-1383 or an act in another
23 jurisdiction that if committed in this state would be a violation of
24 section 28-1381, 28-1382 or 28-1383.

25 (b) The person is convicted of a violation of section 28-1383,
26 subsection A, paragraph 1, 2, 4 or 5 or paragraph 3, subdivision (b).

27 E. If a person is required to equip a motor vehicle with a
28 certified ignition interlock device pursuant to subsection D of this
29 section and the person has a medical condition that prevents the person
30 from using the certified ignition interlock device during the entire time
31 period required by subsection D of this section, the department ~~OF~~
32 ~~TRANSPORTATION~~ shall require monthly alcohol and drug screening instead of
33 the certified ignition interlock device for the time period prescribed by
34 subsection D of this section. The department ~~OF TRANSPORTATION~~ shall
35 require evidence of the medical condition that is satisfactory to the
36 department ~~OF TRANSPORTATION~~ and in a manner prescribed by the department
37 ~~OF TRANSPORTATION~~ from an authorized physician as defined in section
38 28-2409 or an authorized physician assistant as defined in section
39 28-2409. The alcohol or drug screening shall be provided by a facility
40 approved by the department of health services, the United States
41 department of veterans affairs, a substance abuse counselor as defined in
42 section 28-3005 or a probation department.

1 F. The requirement prescribed in subsection D of this section
2 begins on the date the person successfully completes the alcohol or other
3 drug screening, education[, ~~EVIDENCE-BASED PSYCHOTHERAPY~~] or treatment
4 program [OR EVIDENCE-BASED PSYCHOTHERAPY] requirements of this title and
5 the person is otherwise eligible to reinstate the person's driver license
6 or driving privilege. If the person is issued a special ignition
7 interlock restricted driver license for the violations giving rise to the
8 requirements prescribed in subsection D of this section or pursuant to
9 section 28-1321, subsection P or section 28-1385, subsection J, the person
10 shall be credited for the amount of time that a certified ignition
11 interlock device is installed on the person's motor vehicle after the
12 department authorizes the installation of the certified ignition interlock
13 device on that person's motor vehicle.

14 G. A person who is required to equip a motor vehicle with a
15 certified ignition interlock device pursuant to this section shall comply
16 with chapter 4, article 5 of this title.

17 H. The department shall defer the remainder of the time period
18 prescribed in subsection D, paragraph 1, subdivision (a) of this section
19 commencing with the later of six months from the date the interlock was
20 installed or the completion of the requirements of this subsection if all
21 of the following apply:

22 1. The person is sentenced pursuant to section 28-1381,
23 subsection I.

24 2. The person successfully completes an alcohol education program
25 consisting of at least sixteen hours pursuant to section 28-1381.

26 3. The person has maintained a functioning ignition interlock
27 device on all motor vehicles the person operates and has met the
28 requirements of section 28-1461.

29 4. The person has not attempted to operate a vehicle with an
30 alcohol concentration of 0.08 or more two or more times during the period
31 of license restriction or limitation.

32 5. At the time of the offense, the person was not involved in a
33 motor vehicle accident that resulted in physical injury or property
34 damage.

35 6. All necessary compliance information has been provided to the
36 department by the ignition interlock device provider, the alcohol
37 screening program and the alcohol education program.

38 I. The deferment pursuant to subsection H of this section is
39 permanent, unless the person is arrested for a violation of section
40 28-1381, 28-1382 or 28-1383 that occurs during the period of the
41 deferment. If the person is arrested as described in this subsection, the
42 department shall revoke the deferment and require the person to complete
43 the remainder of the time period prescribed in subsection D, paragraph 1,
44 subdivision (a) of this section.

1 J. Notwithstanding any other law, the department shall reduce the
2 length of time that a person is required to have a functioning certified
3 ignition interlock device installed in a motor vehicle pursuant to
4 subsection D of this section by the length of time that the person is
5 incarcerated in a jail or prison facility for a violation of section
6 28-1381 or 28-1383 that did not involve intoxicating liquor.

7 K. For the purposes of this section: ~~;~~

8 1. "Certified ignition interlock device" has the same meaning
9 prescribed in section 28-1301.

10 2. "EVIDENCE-BASED PSYCHOTHERAPY" HAS THE SAME MEANING PRESCRIBED
11 IN SECTION 28-1381.

12 Enroll and engross to conform

13 Amend title to conform

WENDY ROGERS

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04/17/2026

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C: JR

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